

Paschimanchal Vidyut Vitran Nigam Ltd. v. Mohammad Khalid

Allahabad High Court · Single Judge · 21 August 2015 · Matters under Article 227 No. 4194 of 2015 · **Notice issued on 6.15(b) challenge; merits not decided**

HEADNOTE

On PVVNL's Article 227 petition against a Permanent Lok Adalat award treating most of a CT-multiplier differential demand as barred by Electricity Supply Code, 2005 clause 6.15(b), the High Court held that the limitation issue required consideration and issued notice. The licensee's arguments that even 6.15(b) allowed recovery of the last two years, and that Rule 5-A of the 1958 dues-recovery regime prescribed six years, were noted but not decided.

FACTUAL SUMMARY

PVVNL issued a 19 February 2014 bill of Rs.4,65,128 to consumer Mohammad Khalid. January 2014 consumption was Rs.17,043.75; the balance of Rs.4,47,316.06 was claimed as September 2009–December 2013 arrears after a 7 November 2013 inspection found earlier bills had used a CT multiplier of 12 instead of 20. The Permanent Lok Adalat, by award dated 18 October 2014, held all but Rs.1,11,829 time-barred under Supply Code clause 6.15(b). PVVNL challenged the award under Article 227.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15(b)

recovery of arrears / two-year limitation

HOLDING

On the licensee's Article 227 challenge to a Permanent Lok Adalat award that treated all but Rs.1,11,829 of a CT-multiplier differential bill as time-barred under clause 6.15(b), the Court held that the limitation issue required consideration, issued notice to the consumer, and did not decide whether 6.15(b)'s two-year bar or the six-year period urged under the 1958 dues-recovery Rule 5-A governed. ¶ 1

PRINCIPLE TAGS

clause-6.15-two-year-bar-mandatory-licensee-duty-to-act On PVVNL's Article 227 petition against a Permanent Lok Adalat award treating most of a CT-multiplier differential demand as barred by Electricity Supply Code, 2005 clause 6.15(b), the High Court held that the limitation issue required consideration and issued notice.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.15(B) BARS RECOVERY OF THE CT-MULTIPLIER DIFFERENTIAL BEYOND TWO YEARS, OR WHETHER RULE 5-A OF THE 1958 DUES-RECOVERY REGIME EXTENDS LIMITATION TO SIX YEARS

The Court only observed that the matter required consideration and issued notice. ¶ 1